

# CITY MANAGEMENT

## Coordination Sheet

|                                     |                                                                                  |                                                     |                 |             |
|-------------------------------------|----------------------------------------------------------------------------------|-----------------------------------------------------|-----------------|-------------|
| <b><u>FROM:</u></b>                 | <b>Julie Gohlke - Purchasing</b>                                                 |                                                     |                 |             |
| <b><u>DATE:</u></b><br>Oct 28, 2020 |                                                                                  | <b>NAME</b>                                         | <b>INITIALS</b> | <b>DATE</b> |
|                                     | <b>X</b>                                                                         | Mr. Charles Kelm<br>Assistant City Manager          | CK              | 29 Oct      |
|                                     |                                                                                  | Mr. Brian James<br>Assistant City Manager           |                 |             |
|                                     | <b>X</b>                                                                         | Ms. Sarah Gonzalez<br>Assistant to the City Manager | SG              | 10/29       |
|                                     | <b>X</b>                                                                         | Dr. Mark Browne<br>City Manager                     | B               | 10/29       |
| <b><u>COMMENTS:</u></b>             | Agreement with CivicPlus to implement the<br>CivicReady community alert software |                                                     |                 |             |
| <b><u>RETURN TO:</u></b>            | <b>Julie Gohlke - Purchasing</b>                                                 |                                                     |                 |             |

**CITY OF SCHERTZ**  
**CONTRACT APPROVAL FORM**

**A. To be completed by Department**

1. Contract with: Civic Plus Contract amount: \$ 27,204.81
2. Contract for: Civic Ready - Emergency Notification System
3. Fund/Account to be charged: 101-257-541300 Dept. 257-Fire
4. Contract category and amount in the budget: ☐ yes ☒ no – budget adjustment required  
Budget Amendment Ord/Res Number: \_\_\_\_\_ Date: \_\_\_\_\_
5. Contract required to be bid: ☐ yes ☒ no (If unsure, contact Purchasing.)  
Bidding completed: ☐ yes ☒ NA (bidding not required)  
Bidding exemption: (if bidding is not required state reason): Cooperative Purchasing Agreement TIPS 190701
6. Contract termination date: 08/13/23 ☐ NA
7. Terms of contract reviewed and approved by Department Head: ☒ yes
8. Is Asst. City Manager aware of contract? ☒ yes
9. If going to Council, is City Manager aware of contract? ☐ yes ☒ NA
10. Department Head's signature: Kade Long Digitally signed by Kade Long  
Date: 2020.10.28 07:19:44 -05'00' Date: 10/27/2020

**B. To be completed by Purchasing and Asset Management**

1. FINANCE
  - a. Contract amount in the budget: ☐ yes ☒ no – budget adjustment required
  - b. Fund/Account to be charged: 101-257-541300
  - c. Finance Director's signature: [Signature] James Walters  
Date: 2020.10.28 11:29:28 -05'00' Date: 10-28-2020
2. LEGAL
  - a. Contract reviewed and approved by City Attorney ☒ not requested ☐ yes (attach email approval) [Signature]
  - b. Date Reviewed and Approved by City Attorney \_\_\_\_\_
3. PURCHASING
  - a. Vendor aggregate POs <\$50K for budget period ☒ yes ☐ no
  - b. Contract reviewed for insurance, warranty, term, severability and indemnity requirements: ☒ yes
  - c. Contract properly bid in accordance with City Purchasing Policy ☒ yes ☐ NA
  - d. Vendor signature obtained ☐ yes ☒ no (other party requires signature by City first)
  - e. Purchasing and Asset Management Signature: [Signature] Date: 10/28/2020
4. COUNCIL APPROVAL REQUIRED? ☐ yes ☐ no ☒ NA (Required over \$50,000)
  - a. Date of City Council approval: \_\_\_\_\_ Res/Ord #: \_\_\_\_\_ ☐ Attached
  - b. If not approved by City Council, state reason: \_\_\_\_\_

**C. To be completed by Asst City Manager:**

1. Final contract reviewed and recommend City Manager signature: ☒ yes ☐ no
2. Asst. City Manager's Signature: [Signature] Date: 29 Oct 20

**D. To be completed by Assistant to the City Manager**

1. Assistant reviews and obtains CM signature Assistant Signature: [Signature]  
10/29/20
2. Signed contract is given to Purchasing & Asset Management.

**E. To be completed by Purchasing and Asset Management**

1. Date fully-executed contract received by Purchasing: \_\_\_\_\_
2. Date filed to Laserfiche: \_\_\_\_\_ Filed as: \_\_\_\_\_

**CivicPlus**

302 South 4th St, Suite 500  
 Manhattan, KS 66502  
 US

**Quote #:****Date:****Expires On:****Product:**

Q-11355-1

8/25/2020 2:43 PM

11/23/2020

CivicReady

**Client:**

Schertz TX - CivicReady

**Bill To:**

Schertz TX - CivicReady

| SALESPERSON | Phone | EMAIL                | DELIVERY METHOD | PAYMENT METHOD |
|-------------|-------|----------------------|-----------------|----------------|
| Lucas Clark | x     | lclark@civicplus.com |                 | Net 30         |

**CivicReady - Statement of Work****New Products:**

| QTY  | PRODUCT NAME                                         | DESCRIPTION                                                                                                                                                                                                                                               | PRODUCT TYPE |
|------|------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|
| 1.00 | CivicReady Geofencing Annual Fee                     | CivicReady Geofencing Annual Fee                                                                                                                                                                                                                          | Renewable    |
| 1.00 | CivicReady Mass Notification Annual Fee              | CivicReady Mass Notification Annual Fee                                                                                                                                                                                                                   | Renewable    |
| 1.00 | CivicReady Standard Implementation                   | Standard Implementation including up to 3 Groups Configured, Initial Residential Database Upload, Recorded Group Admin Training                                                                                                                           | One-time     |
| 1.00 | CivicReady Internal Employee Notification Annual Fee | CivicReady Internal Employee Notification Annual Fee                                                                                                                                                                                                      | Renewable    |
| 1.00 | CivicReady Premium Implementation                    | Premium Implementation incl. up to 15 Groups Configured, 5 Custom Templates, Residential Database Yearly Refresh, 4 Hrs of Network Admin Training, 2 Hrs of Group Admin Training, Custom Portal Page and Embeds and 10,000 Client Provided Records upload | One-time     |
| 1.00 | CivicReady Virtual Group Admin Training              | CivicReady Virtual Group Admin Training                                                                                                                                                                                                                   | One-time     |
| 1.00 | CivicReady Virtual Network Admin Training            | CivicReady Virtual Network Admin Training                                                                                                                                                                                                                 | One-time     |

|                                                          |               |
|----------------------------------------------------------|---------------|
| List Price—Year 1 Total                                  | USD 12,820.85 |
| Initial Term Payment                                     | USD 6,657.54  |
| Annual Recurring Services – New Products                 | USD 8,000.01  |
| Annual Recurring Services - IPAWS                        | USD 2,121.80  |
| Total Annual Recurring Services Year 2 (August 14, 2021) | USD 10,121.81 |
| Total Annual Recurring Services Year 3 (August 14, 2022) | USD 10,425.46 |
| 3 Year Total                                             | USD 27,204.81 |

**Term & Payment**

1. This Statement of Work ("SOW") shall be subject to the terms and conditions of the CivicPlus Master Services Agreement located at <https://www.civicplus.com/master-services-agreement> ("MSA"), to which this SOW is hereby attached as the CivicReady Statement of Work. By signing this SOW, Client expressly agrees to the terms and conditions

of the MSA throughout the Term of this SOW. Pricing provided at a discounted rate consistent with terms of TIPS Contract # 190701, and subject to the terms of the same.

2. This SOW shall remain in effect for an initial term beginning at signing and ending August 13, 2023 ("Initial Term"). In the event that neither party gives 60 days' notice to terminate prior to the end of the Initial Term or any subsequent Renewal Term, this SOW will automatically renew for an additional 1-year renewal term ("Renewal Term"). The Initial Term and all Renewal Terms are collectively referred to as the "Term".

3. The 3 Year Total will be invoiced as follows: 50% upon signing of this SOW, the remaining 50% at the launch of the Services. Client will pay all invoices within 30 days of the date of invoice.

4. Subsequent Total Annual Recurring Services, including but not limited to hosting, support and maintenance services, shall be invoiced on the first day of each Renewal term and subject to a 3% annual increase.

#### **CivicReady Functionality**

5. CivicReady provides the ability for Client to generate high-speed notifications to listed databases through an internet-hosted software application (the "Services"). Client's database(s) shall be limited to containing contact data located within the geographic boundaries of Schertz, Texas. Client may only place calls via the system to telephone numbers assigned within the 48 contiguous United States of America.

#### **CivicReady Appropriate Use of Service**

6. Client agrees to use Service in ways that conform to all applicable laws and regulations. Client agrees not to make any attempt to gain unauthorized access to the Services or any of CivicPlus' systems or networks. Client agrees that CivicPlus shall not be responsible or liable for the content of messages created by Client, or by those who access the Service, or otherwise delivered by Service on behalf of Client.

7. Client shall be responsible for compliance with all applicable laws regarding outbound telemarketing including the CAN-SPAM ACT, State and Local telemarketing laws and requirements. Client will be solely responsible and liable for any such violations.

#### **CivicReady Security and Confidentiality**

8. CivicPlus will use commercially reasonable practices and standards to secure and encrypt data transmissions. Client understands that CivicPlus is providing Service on the World Wide Web through an upstream third party Internet Service Provider, using public utility services which may not be secure.

9. Client agrees that CivicPlus shall not be liable to Client in the event of any interruption of service or lack of presence on the Internet as a result of disruption by the third party Internet Service Provider or public utility. Client agrees that CivicPlus cannot guarantee the integrity of Client supplied or user supplied data. Any errors, duplications, or inaccuracies related to the Client or user supplied data will be the responsibility of the Client.

10. CivicPlus acknowledges the confidential nature of Client and user supplied data and agrees to prevent the disclosure to the public or to anyone not employed by CivicPlus, any confidential data. Data collected by CivicPlus will remain secured and will only be released upon mutual agreement by both parties or a court order. Client agrees that private citizens may voluntarily contribute their contact information to be used in Service, and CivicPlus shall maintain a database of such information.

#### **Account Information and Privacy**

11. CivicPlus does not own any data, information or material that Client submit to the Service in the course of using the Service ("Client Data"). Client, not CivicPlus, shall have sole responsibility for the accuracy, quality, integrity, legality, reliability, appropriateness, and intellectual property ownership or right to use of all Client Data, and CivicPlus shall not be

responsible or liable for the deletion, correction, destruction, damage, loss or failure to store any Client Data. CivicPlus reserves the right to withhold, remove and/or discard Client Data without notice for any breach, including, without limitation, Client's non-payment. Upon termination for cause, Client's right to access or use Client Data immediately ceases, and CivicPlus shall have no obligation to maintain or forward any Client Data.

#### **Representations & Warranties**

12. Each party represents and warrants that it has the legal power and authority to enter into this Agreement.

13. CivicPlus will use commercially reasonable efforts to maintain continuous access but will not be responsible for events beyond its control.

14. Client represents and warrants that Client has not provided any false information to gain access to the Service and that Client's billing information is correct.

#### **Disclaimer of Warranties and Limitation of Liability**

15. Client understands that CivicPlus cannot and does not guarantee or warrant that files available for downloading from the internet or the Services will be free of viruses or other destructive code. Client is responsible for implementing sufficient procedures and checkpoints to satisfy Client's particular requirements for anti-virus protection and accuracy of data input and output, and for maintaining a means external to our Services for any reconstruction of any lost data. CIVICPLUS WILL NOT BE LIABLE FOR ANY LOSS OR DAMAGE CAUSED BY A DISTRIBUTED DENIAL-OF-SERVICE ATTACK, VIRUSES OR OTHER TECHNOLOGICALLY HARMFUL MATERIAL THAT MAY INFECT CLIENT'S COMPUTER EQUIPMENT, COMPUTER PROGRAMS, DATA OR OTHER PROPRIETARY MATERIAL DUE TO CLIENT'S USE OF THE SERVICES OR TO CLIENT'S DOWNLOADING OF ANY MATERIAL POSTED ON IT, OR ON ANY WEBSITE LINKED TO IT.

16. CLIENT'S USE OF THE SERVICES IS AT CLIENT'S OWN RISK. THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT ANY WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. NEITHER CIVICPLUS NOR ANY PERSON ASSOCIATED WITH CIVICPLUS MAKES ANY WARRANTY OR REPRESENTATION WITH RESPECT TO THE COMPLETENESS, SECURITY, RELIABILITY, QUALITY, ACCURACY OR AVAILABILITY OF THE SERVICES. WITHOUT LIMITING THE FOREGOING, NEITHER CIVICPLUS NOR ANYONE ASSOCIATED WITH CIVICPLUS REPRESENTS OR WARRANTS THAT THE SERVICES WILL BE ACCURATE, RELIABLE, ERROR-FREE OR UNINTERRUPTED, THAT DEFECTS WILL BE CORRECTED, THAT THE SERVICES OR THE SERVER THAT MAKES IT AVAILABLE ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS OR THAT THE SERVICES WILL OTHERWISE MEET CLIENT'S NEEDS OR EXPECTATIONS. CIVICPLUS HEREBY DISCLAIMS ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING BUT NOT LIMITED TO ANY WARRANTIES OF MERCHANTABILITY, NON-INFRINGEMENT AND FITNESS FOR PARTICULAR PURPOSE. THE FOREGOING DOES NOT AFFECT ANY WARRANTIES WHICH CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

17. TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT SHALL CIVICPLUS, ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, VENDORS OR SUPPLIERS BE LIABLE (I) FOR ANY INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE DAMAGES RELATED TO OR ARISING FROM CLIENT'S USE, MISUSE OR INABILITY TO USE THE SERVICES, INCLUDING BUT NOT LIMITED TO, DAMAGES FOR LOST DATA, LOST PROFITS OR COST OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, PERSONAL INJURY OR PROPERTY DAMAGE OF ANY NATURE RESULTING FROM CLIENT'S USE OF THE SERVICES, UNAUTHORIZED ACCESS TO OUR SERVERS, SERVER UNAVAILABILITY AND ANY PERSONAL INFORMATION STORED THEREIN, ANY DELAYS OR INTERRUPTIONS DUE TO ELECTRONIC OR MECHANICAL EQUIPMENT FAILURES, DENIAL OF SERVICE ATTACKS, DATA PROCESSING FAILURES, TELECOMMUNICATIONS OR INTERNET PROBLEMS OR UTILITY FAILURES, HOWEVER CAUSED UNDER ANY THEORY OF LIABILITY, INCLUDING BUT NOT LIMITED, TO CONTRACT, TORT, STRICT LIABILITY OR NEGLIGENCE AND WHETHER OR NOT CIVICPLUS WAS OR SHOULD HAVE BEEN AWARE OR ADVISED OF THE POSSIBILITY OF SUCH DAMAGE OR EVEN IF A REMEDY FAILS OF ITS ESSENTIAL PURPOSE; OR (II)

FOR ANY CLAIM ATTRIBUTABLE TO ERRORS, OMISSIONS OR OTHER INACCURACIES IN THE SERVICES OR DESTRUCTIVE PROPERTIES OF THE SERVICE. IN NO EVENT SHALL CIVICPLUS'S AGGREGATE LIABILITY UNDER THESE TERMS OF USE EXCEED THE TOTAL SUM OF MONIES PAID FROM CLIENT TO CIVICPLUS AS CONSIDERATION FOR USE OF THE SERVICES DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO SUCH LIABILITY.

**Internet Delays**

18. CIVICPLUS' SERVICES MAY BE SUBJECT TO LIMITATIONS, DELAYS, AND OTHER PROBLEMS INHERENT IN THE USE OF THE INTERNET AND ELECTRONIC COMMUNICATIONS. CIVICPLUS IS NOT RESPONSIBLE FOR ANY DELAYS, DELIVERY FAILURES, OR OTHER DAMAGE RESULTING FROM SUCH PROBLEMS.

Signature Page to Follow.

**Acceptance**

By signing below, the parties are agreeing to be bound by the covenants and obligations specified in this SOW and the MSA terms and conditions found at: <https://www.civicplus.com/master-services-agreement>.

IN WITNESS WHEREOF, the parties have caused this SOW to be executed by their duly authorized representatives as of the dates below.

Client

By: Mark Browne  
Name: Mark Browne  
Title: City Manager  
Date: 10/30/20

CivicPlus

By: Amy Vikander  
Name: Amy Vikander  
Title: Vice President of Client Services  
Date: 10/30/2020

**CivicPlus**

302 South 4th St. Suite 500  
 Manhattan, KS 66502  
 US

**Quote #:**

Q-11355-1

**Date:**

8/25/2020 2:43 PM

**Expires On:**

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17. TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT SHALL CIVICPLUS, ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, VENDORS OR SUPPLIERS BE LIABLE (I) FOR ANY INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE DAMAGES RELATED TO OR ARISING FROM CLIENT'S USE, MISUSE OR INABILITY TO USE THE SERVICES, INCLUDING BUT NOT LIMITED TO, DAMAGES FOR LOST DATA, LOST PROFITS OR COST OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, PERSONAL INJURY OR PROPERTY DAMAGE OF ANY NATURE RESULTING FROM CLIENT'S USE OF THE SERVICES, UNAUTHORIZED ACCESS TO OUR SERVERS, SERVER UNAVAILABILITY AND ANY PERSONAL INFORMATION STORED THEREIN, ANY DELAYS OR INTERRUPTIONS DUE TO ELECTRONIC OR MECHANICAL EQUIPMENT FAILURES, DENIAL OF SERVICE ATTACKS, DATA PROCESSING FAILURES, TELECOMMUNICATIONS OR INTERNET PROBLEMS OR UTILITY FAILURES, HOWEVER CAUSED UNDER ANY THEORY OF LIABILITY, INCLUDING BUT NOT LIMITED, TO CONTRACT, TORT, STRICT LIABILITY OR NEGLIGENCE AND WHETHER OR NOT CIVICPLUS WAS OR SHOULD HAVE BEEN AWARE OR ADVISED OF THE POSSIBILITY OF SUCH DAMAGE OR EVEN IF A REMEDY FAILS OF ITS ESSENTIAL PURPOSE; OR (II)

FOR ANY CLAIM ATTRIBUTABLE TO ERRORS, OMISSIONS OR OTHER INACCURACIES IN THE SERVICES OR DESTRUCTIVE PROPERTIES OF THE SERVICE. IN NO EVENT SHALL CIVICPLUS'S AGGREGATE LIABILITY UNDER THESE TERMS OF USE EXCEED THE TOTAL SUM OF MONIES PAID FROM CLIENT TO CIVICPLUS AS CONSIDERATION FOR USE OF THE SERVICES DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO SUCH LIABILITY.

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Signature Page to Follow.

## Acceptance

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IN WITNESS WHEREOF, the parties have caused this SOW to be executed by their duly authorized representatives as of the dates below.

Client

By: Mark Browne  
Name: Mark Browne  
Title: City Manager  
Date: 29 Oct 20

CivicPlus

By: \_\_\_\_\_  
Name: \_\_\_\_\_  
Title: \_\_\_\_\_  
Date: \_\_\_\_\_

### Contact Information

\*all documents must be returned: Master Service Agreement, Statement of Work, and Contact Information Sheet.

**Organization**

URL

Street Address

Address 2

City

State

Postal Code

CivicPlus provides telephone support for all trained clients from 7am –7pm Central Time, Monday-Friday (excluding holidays).  
Emergency Support is provided on a 24/7/365 basis for representatives named by the Client. Client is responsible for  
ensuring CivicPlus has current updates.

**Emergency Contact & Mobile Phone****Emergency Contact & Mobile Phone****Emergency Contact & Mobile Phone****Billing Contact**

E-Mail

Phone

Ext.

Fax

Billing Address

Address 2

City

State

Postal Code

Tax ID #

Sales Tax Exempt #

Billing Terms

Account Rep

Info Required on Invoice (PO or Job #)

Are you utilizing any external funding for your project (ex. FEMA, CARES): Y [ ] or N [ ]

Please list all external sources: \_\_\_\_\_

**Contract Contact**

Email

Phone

Ext.

Fax

**Project Contact**

Email

Phone

Ext.

Fax